

BEFORE THE BOARD OF BEHAVIORAL SCIENCE
OF THE STATE OF IOWA

IN THE MATTER OF	)	NO. 13-007
	)	
Craig Miller,	)	COMBINED STATEMENT OF
	)	CHARGES, SETTLEMENT
RESPONDENT.	)	AGREEMENT AND FINAL ORDER

COME NOW the Iowa Board of Behavioral Science (Board) and Craig Miller (Respondent) and enter into this Combined Statement of Charges, Settlement Agreement and Final Order (Agreement) pursuant to Iowa Code sections 17A.10(2), 272C.3(4) and 645 Iowa Administrative Code 12.1.

1. Respondent was issued Iowa license 00892 on December 30, 2004. Respondent's license to practice mental health counseling is currently active and expires on September 30, 2014.

2. Respondent's address as reported to the Board is 12214 Graf Road, Peosta, Iowa 52068.

3. The Board has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 147, 154D and 272C.

STATEMENT OF CHARGES

COUNT I

Pursuant to Iowa Administrative Code 645—33.2(22), Respondent is charged with submission of a false report of continuing education or failure to submit the biennial report of continuing education.

COUNT II

Pursuant to Iowa Administrative Code 645—33.2(13), Respondent is charged with violation of a regulation or law of this state, another state, or the United States, which relates to the practice of the profession for failing to comply with the audit requirements set forth in Iowa Administrative Code 645—4.11.

FACTUAL CIRCUMSTANCES

1. Respondent reported at the time of the 2012 renewal of his license to practice mental health counseling that he had completed the required continuing education according to Board guidelines.

2. Respondent failed to respond to the Board during an audit of his continuing education within the timelines outlined by the Board and failed to provide proof of his continuing education.

SETTLEMENT AGREEMENT AND FINAL ORDER

3. Respondent is hereby CITED for his failure to comply with the Board continuing education requirements. Respondent is hereby WARNED that engaging in such conduct in the future may result in future disciplinary action, including suspension or revocation of his license to practice mental health counseling in the state of Iowa.

4. Respondent shall complete the forty (40) hours of continuing education he needs to renew his license and provide the Board with certification of completion thereof within six (6) months of Board approval of this Agreement. Three (3) of the forty hours must be in ethics. The continuing education hours accomplished to satisfy this requirement may not be used for future license renewal.

5. Respondent shall remit to the Board a civil penalty in the amount of two hundred and fifty dollars (\$250.00) made payable to "Treasurer, State of Iowa," within ninety (90) days of the date of this agreement.

6. Execution of this Combined Statement of Charges, Settlement Agreement and Final Order constitutes the resolution of a contested case. Respondent has a right to a hearing on the charges, but waives Respondent's right to hearing and all attendant rights, including the right to seek judicial review, by freely and voluntarily agreeing to this Settlement Agreement and Final Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

7. Respondent is freely and voluntarily entering into this Combined Statement of Charges, Settlement Agreement and Final Order. Respondent agrees that State's counsel may present this agreement to the Board and may have *ex parte* communications with the Board while presenting it.

8. This Agreement is subject to approval by the Board. If the Board does not approve this Agreement, it shall be of no force or effect on either party and it shall not be admissible for any purpose in further proceedings in this matter.

9. This Combined Statement of Charges, Settlement Agreement and Final Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

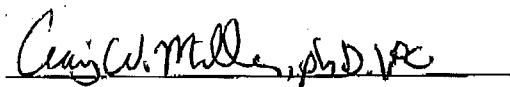
10. In the event Respondent violates or fails to comply with any of the terms of this Combined Statement of Charges, Settlement Agreement and Final Order, the

Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

11. This Combined Statement of Charges, Settlement Agreement and Final Order is a public record available for inspection and copying upon execution, in accordance with the requirements of Iowa Code chapters 22 and 272C.

12. The Board's approval of this Combined Statement of Charges, Settlement Agreement and Final Order shall constitute a FINAL ORDER of the Board.

AGREED AND ACCEPTED:



CRAIG MILLER,
RESPONDENT

CHAIRPERSON, IOWA BOARD OF
BEHAVIORAL SCIENCE

Dated this 7th day of
August, 2013

Dated this _____ day of
_____, 2013

Copies to:

Sara Scott
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor Hoover Bldg.
Des Moines, IA 50319

Craig Miller

Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

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AGREED AND ACCEPTED:

CRAIG MILLER,
RESPONDENT

End Order, AA, LMHC

CHAIRPERSON, IOWA BOARD OF
BEHAVIORAL SCIENCE

Dated this _____ day of
_____, 2013

Dated this 8th day of
August, 2013

Copies to:

Sara Scott
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor Hoover Bldg.
Des Moines, IA 50319

Craig Miller